

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/08/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	19CV354646	Asset Capital Recovery Group LLC vs. Shannon Dudley	Motion: Leave to Amend Plaintiff's motion to amend Defendant's name on the Judgment Notice is proper. The Court has received no opposition from Defendant. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff's motion is granted. Plaintiff to prepare the final order, accompanied by Form EFS-020, within 7 days of the date of the hearing.
LINE 2	24CV432475	McArthur Gist vs. PV Holding Corp et al.	Motion for Summary Judgment Defendant's Motion for Summary Judgement filed 5/11/26. Notice is proper. Statement of Non-Opposition filed June 30, 2026 "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Defendants' motion is GRANTED. Trial date of August 10, 2026 and all corresponding dates to be vacated. Defendant to prepare the final order, accompanied by Form EFS-020, within 7 days of the date of the hearing.

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LINE 3	24CV443623	Riley's Remodeling & Design, Inc. vs. Joseph Shaw et al	Motion for Leave to File Cross-Complaint Defendants' motion for Leave to File Cross Complaint, filed 1/23/26. Notice is proper. The Court has received no opposition from Plaintiff. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Defendants' motion is GRANTED. Defendant to prepare the final order, accompanied by Form EFS-020, within 7 days of the date of the hearing.
LINE 4	25CV457958	John Susino vs. Safeway Inc. et al	Demurrer Defendants' Demurrer to Plaintiff's Complaint is Unopposed and Sustained with 15 days leave to amend.
LINE 5	25CV462561	Jane Doe vs Wanderlust Trust et al	Hearing: Demurrer Please CTRL click (or scroll down to) Line 5
LINE 6	25CV471073	John Doe L.M., an individual, vs Craig Chandler et al	Plaintiff's Motion to Compel compliance with subpoenas for production of business records Please scroll down to Line 6

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LINE 7	25CV478158	Home Loan Eagle, Inc. vs Jordon Trigg et al.	Motion: Compel Plaintiff's motion to compel discovery responses and deem admissions admitted, filed March 13, 2026. Plaintiff has demonstrated that Requests for Admissions were properly served, the time to respond has expired, and no response has been served on propounding party. Notice is proper. The Court has received no opposition from Defendant. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Good cause appearing, the motion is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, propounded by Plaintiff on Defendant on January 12, 2026, shall be deemed admitted. Sanctions are GRANTED in the amount of \$1,487.50 (2 hours @ \$595.00 for attorney James Roberts' reasonable fees) pursuant to Code of Civil Procedure 2023.030. Plaintiff to prepare the final order that repeats the admissions to be admitted verbatim, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.
LINE 8	26CV483739	Yen Lucero vs Ha Dao et al.	Motion to Expunge Lis Pendens Please CTRL click (or scroll down to) Line 8
LINE 9	26CV484025	Rubin Zou vs Amazon.com, Inc. et al.	Hearing: Demurrer Please CTRL click (or scroll down to) Line 9

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9:01	CASE #	CASE TITLE	RULING
LINE 1	24CV450008	Daniel Duran vs General Motors LLC	Motion to Withdraw as Attorney Plaintiff's Counsel David Derderian of Prestige Legal Solutions, P.C. Motion to Withdraw at Attorney Trial in this matter is scheduled for next week July 13, 2026. Trial assignment is July 9, 2026. Plaintiff and Counsel are both ordered to appear at the July 8, 2026 Motion to Withdraw hearing at 9:00 a.m. (remote appearance acceptable.) <i>Plaintiff's failure to appear may result in dismissal of the case.</i>
LINE 2	25CV481915	Keep America Safe and Beautiful vs Flex-Tech Hosing & Tubing, LLC	Hearing: Pro Hac Vice Counsel Defendant Flex-tech Hosing & Tubing, LLC's Application for Scott R. Schillings to appear pro hac vice pursuant to California Rules of Court Rule 9.40. Notice is proper. No opposition filed. Good cause appearing, the application is GRANTED. The court will sign the previously e-filed proposed order.

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Calendar Line 5**Case Name:** *Jane Doe v. Wanderlust Trust et al.***Case No.:** 25CV462561

Demurrer to First Amended Complaint by Defendant Alyssa Thach Terrizzano, Trustee of the Wanderlust Trust.

Procedural and Factual Background

On May 16, 2025, self-represented plaintiff Jane Doe (“Plaintiff”) filed the first amended complaint (“FAC”) against defendants Wanderlust Trust (“Trust”) and Alyssa Thach Terrizzano, as trustee of the Wanderlust Trust (“Trustee”; collectively, “Defendants”) alleging the following causes of action; (1) violation of the Rehabilitation Act and Fair Housing Act; (2) violation of the Fair Housing Act; and (3) discrimination of tenant’s source of income through California Fair Employment and Housing Act (FEHA).

Plaintiff brings this action against Defendants for their policy and practice of unlawfully discriminating against individual in the leasing of housing accommodations. (FAC, ¶ 1.) Specifically, the housing provider, NorCal Property Management Company (“NorCal Property”), and property manager, David Krause, discriminated against Plaintiff based on her status as a Housing Choice Voucher or “Section 8” recipient. (*Id.* at ¶¶ 5, 7.)

On April 3, 2023, Plaintiff contacted NorCal Property about a 2-bedroom duplex located in Los Gatos, California with a posted promise of “First Come First Serve” and viewed the property that same morning. (FAC, ¶¶ 36-38, 59.) After viewing the property and confirming that NorCal Property had not received any applications, Plaintiff immediately submitted an application with her current credit report, proof of income, bank statements, social security number, driver’s license photo, Section 8 housing voucher, and references. (*Id.* at ¶¶ 61-64, 67.) On April 4, 2023, NorCal Property mistakenly contacted Plaintiff about an open house for the same property, and Plaintiff attended the showing in disguise. (*Id.* at ¶ 74.) At the showing, Plaintiff heard that no applications had been submitted, and on April 6, 2023, learned that the property had been rented to another applicant after the April 4th showing. (*Id.* at ¶¶ 75-76.) Plaintiff alleges that the property manager refused to rent the property to her because of her disability and status as a Section 8 recipient. (*Id.* at ¶ 80.)

On September 29, 2025, the Trustee filed the instant demurrer. Plaintiff filed a timely opposition, and the Trustee filed a timely reply.

Demurrer to the FAC

The Trustee demurs to the entire FAC on the ground that Plaintiff improperly named the Trust as a defendant, and accordingly, the FAC fails to state sufficient facts to constitute a cause of action against the Trust. The Trustee also demurs to the first through third causes of action on the grounds that the claims fail to state sufficient facts to constitute a cause of action and are uncertain. (Code Civ. Proc., §§ 430.10, subds. (e)-(f).) Finally, the Trustee demurs to the claim for interest on the ground that no claim would qualify for interest.

Legal Standards

A demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).) These grounds include that “[t]he pleading does not state facts sufficient to

constitute a cause of action” or “[t]he pleading is uncertain.” (Code Civ. Proc., § 430.10, subds. (e)-(f).)

In ruling on a demurrer, the court treats the motion “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) “The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. The court does not, however, assume the truth of contentions, deductions or conclusions of law.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850.) However, it has long been held that on demurrer, leave to amend should be granted where “there is a reasonable possibility that the defect can be cured by amendment.” (*Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100; see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

In California, self-represented litigants are held to the same standards as attorneys and must comply with the California Rules of Court and Rules of Civil Procedure. (See *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [“Pro per litigants are held to the same standards as attorneys. [Citation.]”].)

Preliminary Issues

Plaintiff asserts that the demurrer is moot because it addresses only the three causes of action referred in the original April 4, 2025 complaint, not the six causes of action alleged in the May 16, 2025 FAC. The argument is unpersuasive. While the FAC’s caption does list six causes of action, the body of the FAC itself only alleges three. In any event, a defendant may properly demur to the pleading as a whole or any cause of action stated therein. (Code Civ. Proc., 430.50, subd. (a).)

Plaintiff also asserts that a default should be entered against Defendants for failing to respond to the amended complaint within 30 days of the May 29, 2025 service date (*i.e.* June 28, 2025.) To the extent Plaintiff complains that Defendants have not filed an answer to the FAC, the argument lacks merit as a demurrer constitutes an adequate response to the FAC. Moreover, the delay in filing the demurrer is partly due to the Trustee’s request for an automatic 30-day extension and the parties’ meet and confer efforts. Furthermore, the Court has discretion to hear an untimely demurrer “so long as its action does ‘not affect the substantial rights of the parties.’ [Citations.]” (See *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 282; see also Code Civ. Proc., § 473, subd. (a)(1).)

Discussion

The Trust is an Improperly Named Defendant

The Trustee is correct in demurring to the FAC on the ground that a “trust itself cannot sue or be sued.” (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473 [quoting *Presta v. Tepper* (2009) 179 Cal.App.4th 909, 914].) While Plaintiff properly names the Trustee as a defendant, this does not mean that Plaintiff may also name the Trust as a defendant. (See *Estate of Bowles* (2008) 169 Cal.App.4th 684, 691 [“As a general rule, the trustee is the real party in interest with standing to sue and defend on the trust’s behalf.”]) The Court therefore SUSTAINS the demurrer with 20 days’ leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Failure to State Sufficient Facts as to the Trustee

In demurring to the first, second, and third causes of action of the FAC, the Trustee asserts that the FAC fails to plead any facts or allegations against the Trustee. The argument is persuasive. The FAC is replete with allegations against “Defendant(s) Property Management Company” and “Defendant’s Property Manager” but does not explain the relationship between the Trustee, Property Management Company and Property Manager. The FAC only refers to the Trustee in stating the causes of action. (See e.g., FAC, p. 16:20-21.) The factual allegations do not shed light on how the Trustee is related to the Property Management Company or Property Manager, nor how the Trustee is responsible for their actions.

The Trustee also claims that the first cause of action for discrimination under the Section 504 of the Rehabilitation Act (“Section 504”)¹ is subject to demurrer because the Rehabilitation Act does not apply to an individual but programs or federal agencies receiving financial assistance. The argument is well-taken as Congress limited the application of Section 504 to “those who actually ‘receive’ federal financial assistance”. (*United States Dept. of Transportation v. Paralyzed Veterans of America* (1986) 477 U.S. 597, 605.) The FAC does not allege that the Trustee is a program or federal agency receiving financial assistance.

The Court also finds persuasive that the demurrer to the third cause of action for discrimination under FEHA is sustainable because the FAC fails to allege exhaustion of administrative remedies. (*Gupta v. Stanford University* (2004) 124 Cal.App.4th 407, 411 [“failure to exhaust administrative remedies is a proper basis for demurrer.”]) While Plaintiff claims there is an exception due to an “unreasonable delay by the administrative agency” (Opposition, p. 11:16-18), Plaintiff does not provide the legal authority to support the argument. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of...citation to authority allows this court to treat the contention as waived.”])

The Court therefore SUSTAINS the demurrer with 20 days’ leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Demand for Prejudgment Interest

The Trustee’s demurrer to the FAC’s demand for prejudgment interest is without merit. A demurrer is not the proper procedural vehicle to challenge allegations concerning damages or remedies. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 [“[A] demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy.”]) The Court therefore OVERRULES the demurrer to the FAC’s demand for prejudgment interest.

Uncertainty

While the Trustee’s Notice of Demurrer and Demurrer to Plaintiff’s First Amended Complaint identifies uncertainty as a basis for the demurrer, the memorandum of points and authorities do not substantively address this ground. The argument is therefore waived. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 852 [“When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to

¹ Section 504 states, in relevant part: “No otherwise qualified individual with a disability in the United States, as defined in section 7(20) [29 USCS § 705(20)], shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance or under any program or activity conducted by any Executive agency or by the United States Postal Service.” (29 U.S.C. 794, subd. (a).)

authority, we treat the point as waived.”]) The Court OVERRULES the demurrer to the first through third causes of action on the ground of uncertainty.

Disposition

The Trustee’s demurrer to the FAC on the ground that Plaintiff improperly names the Trust as a defendant is SUSTAINED with 10 days’ leave to amend.

The Trustee’s demurrer to the first through third causes of action on the ground of failure to state sufficient facts to constitute a cause of action is SUSTAINED with 10 days’ leave to amend.

The Trustee’s demurrer to the demand for prejudgment interest on the ground of failure to state sufficient facts is OVERRULED.

The Trustee’s demurrer to the first through third causes of action on the ground of uncertainty is OVERRULED.

The Court will prepare the Order.

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Calendar Line 6**Case Name:** *John Doe L.M. vs Craig Chandler, et al.***Case No.:** 25CV471073**Plaintiff's Motion to Compel Santa Clara County District Attorney's Office's Compliance with Subpoena for Production of Business Records and Request for Sanctions**

At the outset, the Court notes that the Santa Clara County District Attorney's Office ("SCCDAO") did not file a formal opposition to Plaintiff's motion. However, the absence of an opposition does not automatically entitle Plaintiff to the relief requested. Plaintiff bears the burden of establishing that the requested order is authorized and appropriate under the applicable legal standards. The Court further notes that Plaintiff's moving papers attach correspondence reflecting the SCCDAO's position concerning the subpoena. Although those communications do not constitute a formal opposition, they provide context regarding the nature of the dispute presented, which appears to concern primarily the legal scope of a nonparty deposition subpoena for production of business records.

Plaintiff served a deposition subpoena for production of business records seeking the SCCDAO's complete criminal investigative and prosecutorial file concerning Defendant Chandler, including materials originating from other agencies, such as police reports, search warrant materials, witness interviews, forensic examinations, school records, 911 calls, and audio/video evidence. The SCCDAO produced documents it contends are within its custodial responsibility, including charging documents, case summary materials, certain crime laboratory materials, and discovery transmittal documentation. The SCCDAO declined to produce materials created and maintained by other agencies, asserting that it is not the custodian of records for those materials and cannot provide the required certification under Evidence Code section 1561.

Plaintiff contends that the SCCDAO's reliance on Evidence Code section 1561 and *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039 is misplaced because authentication requirements concern admissibility rather than discovery, and because the relevant inquiry is whether the records are within the SCCDAO's possession, custody, or control.

The Court recognizes Plaintiff's argument that evidentiary authentication requirements do not necessarily resolve all questions concerning discoverability. However, Plaintiff's subpoena was directed to the SCCDAO as a nonparty custodian of business records. The Court is not persuaded that Plaintiff has established that the SCCDAO may be compelled, through this subpoena procedure, to produce and authenticate records created and maintained by separate governmental entities merely because those records were reviewed, received, or utilized during a criminal prosecution.

The issue before the Court is not whether the requested materials may ultimately be discoverable from an appropriate source. Rather, the issue is whether Plaintiff has demonstrated that the SCCDAO failed to comply with a deposition subpoena for production of business records by declining to produce records for which it asserts it is not the custodian of records.

On the present record, Plaintiff has not established that the SCCDAO's response was improper. The motion is therefore DENIED without prejudice.

Plaintiff's request for monetary sanctions in the amount of \$3,060 is DENIED. The Court finds that the dispute presents a legitimate legal issue concerning the scope of a nonparty business records subpoena and the application of Evidence Code section 1561. The SCCDAO's position, as reflected in the correspondence submitted by Plaintiff, was not shown to be unreasonable or made in bad faith.

The parties are encouraged to meet and confer regarding any remaining disputed categories of documents.

The Court will prepare the Order.

Calendar Line 8**Case Name:** *Yen Lucero v. Ha V. Dao***Case No.:** 26CV483739**Defendants' Motion to Expunge Notice of Pendency of Action**

A notice of pendency of action shall be expunged unless the claimant establishes by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) The claimant bears the burden of proof.

As an initial matter, Plaintiff's opposition was untimely filed. The Court has discretion to disregard the untimely opposition. Nevertheless, even considering the opposition and accompanying rebuttal on the merits, Plaintiff has not met her burden under section 405.32.

Plaintiff's opposition clarifies that the alleged fraudulent transfer is not limited to the approximately \$21,000 withdrawal discussed in Defendants' moving papers. Rather, Plaintiff now contends that the relevant transfer consists of the approximately \$425,000 cash down payment used to purchase the subject property and the conveyance of an ownership interest to Defendant Khoi Truong Nguyen, whom Plaintiff characterizes as an insider receiving title without consideration. Plaintiff further seeks to impose a constructive trust and avoid the alleged transfer. Assuming without deciding that these allegations are sufficient to assert a "real property claim" within the meaning of Code of Civil Procedure section 405.4, Plaintiff nevertheless fails to establish the probable validity of that claim.

The evidence submitted does not demonstrate, by a preponderance of the evidence, that funds belonging to the judgment debtor were used to acquire the subject property or that the debtor transferred an interest in the property subject to avoidance. Although Plaintiff argues that the \$425,000 down payment represented fraudulently transferred assets, Plaintiff offers no competent evidence tracing those funds to the judgment debtor. Likewise, Plaintiff has not presented evidence establishing that Defendant Ha Vu Le Dao held an ownership interest in the property that was transferred or concealed. By contrast, Defendants submit declarations stating that Hien Van Dao provided the down payment, obtained the mortgage financing, and that Ha Vu Le Dao never held title to the property.

Plaintiff also relies upon a June 30, 2026 Bankruptcy Court order authorizing the Chapter 7 Trustee to retain a forensic accounting firm to investigate potential avoidance issues. That order demonstrates only that further investigation has been authorized. It does not constitute a judicial finding that a fraudulent transfer occurred, nor does it establish the probable validity of Plaintiff's claims for purposes of Code of Civil Procedure section 405.32.

The Court also notes that Defendants argue Plaintiff lacks standing to pursue fraudulent transfer claims following Ha Vu Le Dao's Chapter 7 bankruptcy filing because such claims belong exclusively to the bankruptcy estate. The Court need not definitively resolve that issue on the present motion. Even assuming Plaintiff has standing to pursue the asserted claims, Plaintiff has not met the evidentiary burden required to establish their probable validity.

Accordingly, Plaintiff has failed to carry her burden under Code of Civil Procedure section 405.32, and the Notice of Pendency of Action must be expunged.

Attorney's Fees

Defendants seek attorney's fees pursuant to Code of Civil Procedure section 405.38.

Although Defendants are the prevailing parties on the motion, the Court finds that an award of attorney's fees is not warranted. Plaintiff's claims, while ultimately insufficient to establish probable validity, were not wholly without substantial justification. Plaintiff presented a legal theory seeking to impose a constructive trust and avoid allegedly fraudulent transfers affecting title to the property. Additionally, the Bankruptcy Court's authorization for the Chapter 7 Trustee to retain a forensic accountant to investigate potential avoidance claims provides some objective basis for Plaintiff's belief that further inquiry into the challenged transactions is warranted. While that order does not establish the merits of Plaintiff's claims, it supports the conclusion that Plaintiff's position was not frivolous or entirely lacking in factual foundation.

Accordingly, the Court exercises its discretion to deny Defendants' request for attorney's fees under Code of Civil Procedure section 405.38.

Disposition

1. Defendants' Motion to Expunge Notice of Pendency of Action is GRANTED.
2. The Notice of Pendency of Action recorded against the subject property shall be expunged.
3. Defendants' request for attorney's fees and costs pursuant to Code of Civil Procedure section 405.38 is DENIED.

Defendant to prepare the final proposed order accompanied by the necessary Form EFS-020 within 7 days of the hearing.

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Calendar line 9

Case Name: *Rubin Zou v. Amazon.com, Inc. et al.*

Case No.: 26CV484025

Plaintiff Rubin Zou (“Plaintiff”) alleges Defendants Amazon.com (“Amazon”), Naiem Shaik (“Shaik”), (collectively, “Defendants”) and Does 1 through 40 inclusive terminated Plaintiff in retaliation for protected activity after Plaintiff disclosed misconduct, policy violations, and evidence manipulation within Amazon’s internal employment adjudication system. Presently before the court is Defendants’ demurrer (“Demurrer”) to Plaintiff’s Complaint (“Complaint”).

I. BACKGROUND

Plaintiff was hired by Amazon on or about December 4, 2023. (Complaint, ¶ 12.) In April 2025, Plaintiff’s direct supervisor, Shaik, began meeting with Plaintiff to raise concerns with Plaintiff’s performance. (Complaint, ¶ 18.) On May 8, 2025, Defendants presented Plaintiff with a Performance Improvement Plan (“PIP”) which gave Plaintiff the option to either sign a severance agreement in exchange for \$31,262 in severance or enter an “[Performance] Improve[ment] Plan.” (Complaint, ¶ 21.) The PIP represented that if Plaintiff met expectations, he would be removed from the PIP, and if not, he could appeal the manager’s assessment through a structured appeal process. (Complaint, ¶ 23.) The document further stated that “if your appeal is successful, you will be removed from Pivot (PIP) immediately and work with a Talent Advisor who will help you navigate the internal transfer process.” (*Ibid.*)

On or about May 9, 2025, Shaik told Plaintiff the PIP was not his idea but came “from the top,” stated words to the effect of “someone has to go,” and conveyed that Plaintiff was the easiest target as the most junior employee. (Complaint, ¶ 24.) Shaik further stated that he would help Plaintiff, while also referencing a former colleague who “tried everything he could but failed.” (*Ibid.*) Later, Plaintiff sought guidance from Shaik’s manager, who discouraged Plaintiff from proceeding unless Plaintiff was absolutely certain that he would succeed. (Complaint, ¶ 25.) Plaintiff elected to forego severance and enter the PIP process, believing the PIP to be a genuine improvement opportunity with an appeal safeguard and relying on that representation when evaluating the Improve Plan option as a viable path to saving his job. (Complaint, ¶¶ 27, 26.)

Plaintiff was on the PIP from May 15, 2025 to June 13, 2025. (Complaint, ¶ 28.) During that time, Plaintiff was assigned two projects. (Complaint, ¶¶ 30-47.) On June 13, 2025, Shaik issued an “unsuccessful” assessment. (Complaint, ¶ 49.) For the first project, Shaik stated that though Plaintiff had completed the assigned tasks of closing five tickets, Plaintiff failed to satisfactorily complete the project based on unlisted tickets outside the defined project scope, including tickets created more than 10 days after the given deadline. (Complaint, ¶¶ 30, 50.) For the second project, Shaik stated that Plaintiff had not met expectations and that no design document and no code reviews had been submitted, leading Shaik to assess failure for the second project as well. (Complaint, ¶ 51.) However, the second project assigned to Plaintiff “involved brand-new hardware and embedded-system uncertainties unfamiliar to the team...making the project inherently complex and difficult even for experienced engineers, let alone an entry-level employee.” (Complaint, ¶ 40.) Plaintiff had ten working days to complete the project because of unavailable hardware. (Complaint, ¶ 41.) The requirements for the second project did not specify when Plaintiff was required to submit a design document, when

to submit code for review, or when reviews would occur. (Complaint, ¶ 42.) Shaik's assessment of Plaintiff's work on the second project "was false and omitted material context known to Shaik, including hardware constraints, the absence of defined check-in timing, and Plaintiff's completion of required functionality by the deadline." (Complaint, ¶ 52.)

On June 18, 2025, Plaintiff notified Shaik that he would be appealing Shaik's assessment based on false statements and out-of-scope criteria. (Complaint, ¶ 54.) Shaik responded by telling Plaintiff words to the effect of "you've burnt the bridge and no manager will hire you." (Complaint, ¶ 55.) On or about June 19, 2025, after Plaintiff submitted the appeal, Amazon confirmed receipt of his appeal and stated that if the appeal was unsuccessful, Plaintiff's employment would end with a PIP-payment option, and if successful, Plaintiff could remain or work with a Talent Advisor. (Complaint, ¶ 58.) Amazon designated a Performance Management coordinator to provide "PIP process support" and a separate facilitator for the appeal meeting. (*Ibid.*)

Amazon provided Plaintiff with the appeal policy and related materials, which stated that the appendix to the appeal was intended to provide supporting documentation pertaining to the Improve Plan and time period and that nonconforming content could be removed. (Complaint, ¶¶ 59, 63.) Plaintiff observed that materials Shaik submitted included substantial material outside the PIP period and/or unrelated to the PIP projects and included a revised assessment, despite written materials Plaintiff had received prohibiting managers from revising assessments after appeal. (Complaint, ¶¶ 59, 64.)

Plaintiff raised this concern with Amazon, and an HR representative responded that the appendix could include content outside the assessment form to support the manager's outcome and stated he did not see unfairness in the process. (Complaint, ¶ 69.) Plaintiff's appeal hearing was originally scheduled for July 2, 2025, but was rescheduled and took place on July 10, 2025. (Complaint, ¶¶ 70, 79.) In the interim, Shaik began actively monitoring Plaintiff's whereabouts and work activities without assigning substantive tasks, and the assigned appeal coordinator contacted Plaintiff within minutes of Shaik contacting Plaintiff, with nearly identical inquiries regarding Plaintiff's daily work activities. (Complaint, ¶¶ 73, 75.) The appeal hearing involved a decision by a panel of individuals not consistent with Plaintiff's role who were given limited time to review the record, which included material outside the PIP period in violation of Amazon's appeal policy. (Complaint, ¶¶ 78, 81, 82.) Plaintiff was informed of the unsuccessful appeal and terminated mere minutes after the July 10, 2025 appeal hearing. (Complaint, ¶ 84.) On July 13, 2025, Plaintiff sent a detailed written complaint to HR leadership and senior executives reporting falsified assessments, sabotage, appeal-rule violations, biased administration, and evidence manipulation. (Complaint, ¶ 89.) Amazon conducted an interview with Plaintiff to investigate the complaint, (Complaint, ¶ 91), but on or about July 25, 2025, Amazon closed the investigation and stated they found no policy or standards violation. (Complaint, ¶ 95.)

Plaintiff alleges causes of action for whistleblower retaliation, fraud (intentional misrepresentation and concealment), intentional infliction of emotional distress, breach of the implied covenant of good faith and fair dealing, wrongful termination in violation of public policy, breach of implied contract, and promissory estoppel. Defendants demurred to all causes of action on February 13, 2026. Plaintiff filed an Opposition to Defendants' demurrer on June 17, 2026 ("Opposition").

II. DEMURRER

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*Mathews v. Becerra* (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

i. First Cause of Action: Whistleblower Retaliation

Defendants demur to Plaintiff’s first cause of action for whistleblower retaliation on the basis that Plaintiff has not alleged facts showing that Plaintiff engaged in activity protected by Labor Code section 1102.5, and because Plaintiff cannot state this cause of action against Mr. Shaik as a matter of law. (Demurrer, ¶ 1.)

Labor Code section 1102.5 provides: “An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information...to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance...if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation[.]” (Lab. Code, § 1102.5, subd. (b).) Plaintiff alleges that he engaged in protected activity “by disclosing information that he reasonably believed revealed violations of law, rules, regulations, and conduct contrary to fundamental public policy, including fraudulent and deceptive practices such as falsified performance assessments, manipulation of performance criteria, violation of written appeal rules, submission of out-of-time-period materials, and retaliatory intimidation.” (Complaint, ¶ 108.) Plaintiff’s allegations are insufficient to establish that he engaged in protected activity within the meaning of the statute. Plaintiff alleges that he reported unfairness and violations of Amazon’s policy in the performance improvement plan, assessment, and appeal process to Amazon. These are all internal personnel matters which do not rise to the level of whistleblowing retaliation under section 1102.5. (See *Carter v. Escondido Union High School Dist.* (2007) 148 Cal.App.4th 922, 933 [employee’s disclosure to another employee did not trigger whistleblower protections because employee did not “disclose a violation of state or federal statute, or a violation or noncompliance with a state or federal rule or regulation.”], *Mueller v. County of Los Angeles* (2009) 176 Cal.App.4th 809, 822 (*Mueller*) [employee’s

whistleblower claim lacked merit because “[m]atters such as transferring employees, writing up employees, and counseling employees are personnel matters.”.)

Plaintiff argues in opposition that he alleged in his Complaint that he has reasonable cause to believe he was engaging in protected activity by reporting “compliance concerns,” and that he was not merely reporting issues with internal personnel matters. (Opposition, p. 7.) Labor Code section 1102.5 explicitly protects employees who have reasonable cause to believe they are reporting a legal violation, but the Complaint does not allege facts sufficient to establish Plaintiff had reasonable cause to believe he reported a violation of law. Plaintiff alleged that he reported facts he reasonably believed revealed deception, retaliation, evidence manipulation, and rule violations in a formal employment adjudication system. (Complaint, ¶ 89.) Much like the plaintiff in *Mueller*, Plaintiff “reported violations of the department’s own policies,” not “perceived violations of federal or state statutes, rules or regulations.” (*Mueller*, *supra*, 176 Cal.App.4th at p. 822.) Consequently, Plaintiff’s Complaint does not sufficiently allege protected activity or reasonable cause to believe he engaged in protected activity, foreclosing a claim for whistleblower retaliation.

Plaintiff’s Complaint does allege that he reported “fraudulent and deceptive practices” and was retaliated against for doing so. (Complaint, ¶ 108.) To the extent that Plaintiff argues he reasonably believed he was reporting the legal violation of fraudulent deceit, this argument also fails. Civil Code section 1709 states that fraudulent deceit occurs when: “[o]ne...willfully deceives another with intent to induce him to alter his position to his injury or risk[.]” (Civ. Code, § 1709.) Plaintiff does not allege that he had reasonable cause to believe that Defendants engaged in fraudulent deceit with respect to the PIP process. Plaintiff was told that “if Plaintiff met expectations, he would be removed from the PIP, and if not, he could appeal the manager’s assessment through a structured appeal process. The document further stated that ‘if your appeal is successful, you will be removed from Pivot (PIP) immediately and work with a Talent Advisor who will help you navigate the internal transfer process.’” (Complaint, ¶ 23.) The Complaint does not allege facts sufficient to establish that Plaintiff had reasonable cause to believe that the PIP process was fraudulent and he was “willfully deceived” such that he would accept the PIP and forego the severance payment, because he does not sufficiently allege that Defendants deceived him. According to the Complaint, Defendants did what they said they would do by allowing Plaintiff to appeal the manager’s assessment when Plaintiff did not meet their expectations. (Complaint, ¶ 58.) Consequently, Plaintiff did not have reasonable cause to believe Defendants engaged in fraudulent deceit and his later disclosures and requests for investigation cannot be considered protected activity.

Plaintiff’s claim against Shaik also fails. An employee cannot sue other former employees “based on their conduct relating to personnel actions, e.g., termination, demotion, discipline, transfers, compensation setting, work assignments, and/or performance appraisals” unless the suit is permitted by statute. (*Sheppard v. Freeman* (1998) 67 Cal.App.4th 339, 346.) Labor Code section 1102.5 establishes liability for “an employer, or any person acting on behalf of an employer.” (Lab. Code, § 1102.5.) While the California Supreme Court has not directly interpreted this specific language in the Labor Code, it has found that similar language in other statutes prohibiting retaliation does not create liability for individual supervisors. (*Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158 [anti-retaliation statute which applied to “any employer, labor organization, employment agency, or person” did not create personal liability for nonemployer individuals].) As such, Plaintiff cannot sue Defendant Shaik for whistleblower retaliation under Labor Code section 1102.5.

Defendants' demurrer to Plaintiff's first cause of action for whistleblower retaliation is SUSTAINED, WITH 30 DAYS' LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 689 [denial of leave to amend on initial complaint rare and only appropriate when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained].)

ii. Second Cause of Action: Fraud (Intentional Misrepresentation and Concealment)

Defendants demur to Plaintiff's second cause of action for fraud (intentional misrepresentation and concealment) on the basis that Plaintiff has not alleged facts distinguishing his fraud claim from his claim for wrongful termination in violation of public policy, and because Plaintiff has failed to allege facts sufficient to state a cause of action against Mr. Shaik in his individual capacity. (Demurrer, ¶ 2.)

"Wrongful termination of employment ordinarily does not give rise to a cause of action for fraud or deceit, even if some misrepresentation is made in the course of the employee's dismissal. Tort recovery is available only if the plaintiff can establish all of the elements of fraud with respect to a misrepresentation that *is separate from the termination of the employment contract, i.e., when the plaintiff's fraud damages cannot be said to result from termination itself.*" (*Hunter v. Up-Right, Inc.* (1993) 6 Cal.4th 1174, 1178, emphasis added.) Plaintiff argues in opposition that the Complaint alleges fraud separate from the termination of the employment contract, specifically that he was fraudulently induced to elect the PIP option instead of accepting a severance payment because Amazon deceitfully led him to believe the PIP process would be fair. (Opposition, p. 9.)

"The elements of fraud... are (a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citation]" (*Agosta v. Astor* (2004) 120 Cal.App.4th 596, 608.) Plaintiff did not allege facts sufficient to state a claim of fraud against either Amazon or Shaik.

Plaintiff alleges that Defendants did not disclose the following material facts regarding the PIP process:

- a. the Improve Plan projects were designed and administered in a manner not reasonably achievable under the stated conditions;
- b. assessment criteria would be retroactively expanded and subjectively manipulated after project deadlines;
- c. appeal rules limiting admissible materials and prohibiting assessment revision would not be enforced;
- d. the appeal outcome was predetermined regardless of Plaintiffs performance or evidence; and
- e. the assigned appeal coordinator was presented to Plaintiff as a neutral process-support resource, but in practice declined to enforce appeal policies, engaged in monitoring Plaintiffs work activities in coordination with management, and thereafter assumed control over the appeal process.

(Complaint, ¶ 120.)

Plaintiff alleges that Defendants intended Plaintiff to select the PIP instead of the severance (Complaint, ¶ 155), but no facts are alleged from which the court could reach that conclusion. While “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.) The facts of the Complaint indicated that Defendants presented Plaintiff with the option to select the PIP or severance, but there are no additional facts alleged to support a finding that Defendants preferred Plaintiff select one option over the other or that they deceived Plaintiff in order to hasten that result. Rather, Plaintiff’s Complaint alleges facts that support the opposite conclusion, as Plaintiff asked Shaik’s supervisor if he should elect the PIP option or severance and was told he should only pursue the PIP if he was absolutely certain he could succeed. (Complaint, ¶ 25.)

As to Plaintiff’s ability to sustain a claim, against Shaik as an individual, for fraud, Plaintiff does not identify any false misrepresentations that Shaik specifically made regarding the PIP process which Shaik allegedly intended Plaintiff to detrimentally rely on. Moreover, Plaintiff’s claim against Shaik is barred as a matter of law. An employee cannot sue other former employees “based on their conduct relating to personnel actions, e.g., termination, demotion, discipline, transfers, compensation setting, work assignments, and/or performance appraisals” unless the suit is permitted by statute, which it is not here. (*Sheppard v. Freeman*, *supra*, 67 Cal.App.4th at p. 346.)

Defendants’ demurrer to Plaintiff’s second cause of action for fraud (intentional misrepresentation and concealment retaliation) is SUSTAINED, WITH 30 DAYS’ LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp.*, *supra*, 83 Cal.App.5th at p. 689.)

iii. Third Cause of Action: Intentional Infliction of Emotional Distress

Defendants demur to Plaintiff’s third cause of action for intentional infliction of emotional distress on the basis that Plaintiff has not alleged facts showing that Defendants engaged in extreme or outrageous conduct, because the cause is preempted by the doctrine of workers’ compensation exclusivity under the Labor Code, and because Plaintiff has failed to allege facts sufficient to state a cause of action against Mr. Shaik in his individual capacity. (Demurrer, ¶ 3.)

Labor Code section 3602 provides that the exclusive remedy in connection with alleged wrongful termination is workers’ compensation, thus precluding civil actions to recover damages based on intentional infliction of emotional distress. (Lab. Code, § 3602.) There are exceptions where a plaintiff can show that the injury causing the emotional distress occurred outside the normal course of the employer-employee relationship, but even severe emotional distress arising from intentional, outrageous misconduct at the worksite still falls within the normal course of the employer-employee relationship. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 902; *see also Singh v. Southland Stone, U.S.A., Inc.* (2010) 186 Cal.App.4th 338, 367 [workers’ compensation exclusivity rule barred intentional infliction of emotional distress claim where employer “berated and humiliated [Plaintiff],” criticized his job performance, and insulted him with profanities on a regular basis.])

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 833.) "In order to avoid a demurrer, the plaintiff must allege with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Ibid.*, internal citation and quotation marks omitted.)

Here, Plaintiff has failed to allege facts sufficient to state a claim of intentional infliction of emotional distress against Amazon because Plaintiff failed to allege facts showing that the injury causing emotional distress occurred outside the normal course of the employer-employee relationship. Plaintiff's Complaint alleges that Defendants falsified performance assessments, threatened Plaintiff, manipulated the adjudicative process, monitored Plaintiff's activities after the appeal was initiated, sent intimidation communications during the termination process, and repeatedly offered false assurances of fairness while proceeding toward a predetermined outcome. (Complaint, ¶ 129.) All of the above arose at the worksite in the ordinary and expected course of Plaintiff's PIP and appeal. Additionally, Plaintiff has failed to allege facts sufficient to state a claim of intentional infliction of emotional distress against Shaik. The Complaint does not allege facts sufficient to show that Shaik engaged in extreme or outrageous conduct.

Defendants' demurrer to Plaintiff's third cause of action for intentional infliction of emotional distress is SUSTAINED, WITH 30 DAYS' LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp.*, *supra*, 83 Cal.App.5th at p. 689 [denial of leave to amend on initial complaint rare and only appropriate when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained].)

iv. Fourth Cause of Action: Breach of the Implied Covenant of Good Faith and Fair Dealing

Defendants demur to Plaintiff's fourth cause of action for breach of implied covenant of good faith and fair dealing on the basis that the Complaint fails to allege facts sufficient to establish the existence of an implied contract superseding the statutory presumption of at-will employment. (Demurrer, ¶ 4.)

Labor Code section 2922 establishes that employment without a specified term may be terminated at the will of either party. (Lab. Code, § 2922.) "[B]reach of the implied covenant cannot logically be based on a claim that [the] discharge [of an at-will employee] was made without good cause... '[i]f such an interpretation applied, then all at-will contracts would be transmuted into contracts requiring good cause for termination, and Labor Code section 2922 would be eviscerated.'" (*Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654, 698, fn. 39.) Plaintiff has not alleged the existence of an implied employment contract superseding the presumption of at-will employment. Plaintiff has not alleged facts sufficient to support a finding that the PIP supplanted Plaintiff's status as an at-will employee.

Plaintiff argues that "he does not allege that Defendants were required to retain him absent good cause; rather, Plaintiff alleges that Defendants exercised their discretionary

authority over the PIP and appeal processes in bad faith so as to deprive Plaintiff of the benefits of those promised procedures.” (Complaint, ¶ 139.) “A claim for breach of the implied covenant of good faith and fair dealing requires the existence of a contract, whether express or implied...[t]here is no obligation to deal fairly or in good faith absent an existing contract.” (*Alameda Health System v. Alameda County Employees’ Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1190, internal citation and quotation marks omitted.)

Plaintiff does not allege facts sufficient to sustain a claim that Defendants and Plaintiff had a contract. Civil Code section 1550 establishes that in order for a contract to be enforceable, there must be consideration among consenting parties capable of contracting and a valid object to the contract. (Civ. Code, § 1550.) The PIP cannot be considered a contract between the parties because Plaintiff failed to allege facts sufficient to find that Amazon consented to be bound by the terms of the PIP as Plaintiff believed them to be or that Amazon consented to a contract superseding the statutory presumption of at-will employment. Moreover, Plaintiff did not allege consideration between the parties or facts sufficient to find that there was adequate consideration such that the PIP could be considered a contract. The facts as alleged cannot sustain a claim for breach of the implied covenant of good faith and fair dealing because the Complaint does not allege a contract between parties.

Defendants’ demurrer to Plaintiff’s fourth cause of action for breach of the implied covenant of good faith and fair dealing is SUSTAINED, WITH 30 DAYS’ LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp.*, *supra*, 83 Cal.App.5th at p. 689.)

v. Fifth Cause of Action: Wrongful Termination in Violation of Public Policy

Defendants demur to Plaintiff’s fifth cause of action for wrongful termination in violation of public policy on the basis that the Complaint fails to allege facts sufficient to support a violation of public policy, instead alleging violation of Amazon’s company policy, and because Plaintiff cannot state this cause against Mr. Shaik in his individual capacity as a matter of law. (Demurrer, ¶ 5.)

A discharge is actionable as against public policy only if it violates a policy that is: “(1) delineated in either constitutional or statutory provisions; (2) ‘public’ in the sense that it ‘inures to the benefit of the public’ rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) ‘substantial’ and ‘fundamental.’” (*Carter v. Escondido Union High School Dist.* (2007) 148 Cal.App.4th 922, 929, internal citations omitted.)

Plaintiff alleges that his termination violated Labor Code section 1102.5, Civil Code section 1709, and “California’s common-law prohibition against fraudulent, retaliatory, and bad-faith conduct in employment relationships.” (Complaint, ¶ 144.) This court has sustained Defendants’ demurrer to Plaintiff’s cause of action for retaliation under Labor Code section 1102.5, so that statute cannot be a basis for finding that Plaintiff adequately pled a cause of action for wrongful termination in violation of public policy. The court has also sustained Defendants’ demurrer to Plaintiff’s cause of action for fraud. Moreover, termination after reporting violations of internal company policy is not wrongful termination in violation of public policy. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1257.)

In addition, Plaintiff cannot assert a claim of wrongful termination in violation of public policy against Shaik as an individual as a matter of law. (*Miklosy v. Regents of University of California, supra*, 44 Cal.4th at p. 900 [an individual cannot commit the tort of wrongful discharge in violation of public policy; the individual can only be the agent by which an employer commits that tort].)

Defendants' demurrer to Plaintiff's fifth cause of action for wrongful termination in violation of public policy is SUSTAINED, WITH 30 DAYS' LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp., supra*, 83 Cal.App.5th at p. 689.)

vi. Sixth Cause of Action: Breach of Implied Contract

Defendants demur to Plaintiff's sixth cause of action for breach of implied contract on the basis that the Complaint fails to allege facts sufficient to establish the existence of an implied contract superseding the statutory presumption of at-will employment. (Demurrer, ¶ 6.)

As explained above, Labor Code section 2922 establishes that employment without a specified term may be terminated at the will of either party, and Plaintiff has not alleged facts sufficient to find the existence of a contract superseding the presumption of at-will employment. (Lab. Code, § 2922.)

Defendants' demurrer to Plaintiff's sixth cause of action for breach of implied contract is SUSTAINED, WITH 30 DAYS' LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp., supra*, 83 Cal.App.5th at p. 689.)

vii. Seventh Cause of Action: Promissory Estoppel

Defendants demur to Plaintiff's seventh cause of action for promissory estoppel on the basis that the Complaint fails to allege facts sufficient to establish the existence of a promise or reasonable reliance on a promise. (Demurrer, ¶ 7.)

At the outset, the court notes that contract and promissory estoppel claims are "not only ... distinct or alternative theories of recovery but also [are] mutually exclusive." (*Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.* (2012) 211 Cal.App.4th 230, 243.)

The elements of a promissory estoppel claim are: "(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by [that party's] reliance...To be enforceable, a promise need only be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Broome v. Regents of University of California* (2022) 80 Cal.App.5th 375, 389, internal citations and quotation marks omitted.)

Here, Plaintiff alleges that Defendants promised Plaintiff the PIP process would be fair, Plaintiff reasonably relied on that promise, and Plaintiff lost out on the severance Defendants offered. (Complaint, ¶¶ 154-157.) However, the facts in the Complaint do not sufficiently allege a clear and unambiguous promise such that the court can determine the scope of

Amazon's duty. Plaintiff argues that Amazon made "clear and definite promises to Plaintiff, including through the written Performance Improvement Plan, appeal rules, and related communications, that the Improve Plan and appeal process were fair, rule governed opportunities to evaluate performance and to correct materially improper assessments through neutral review." (Complaint, ¶ 154.) Plaintiff states that Defendants presented Plaintiff with the option to either sign a severance agreement in exchange for \$31,262 in severance or enter an "[Performance] Improve[ment] Plan." (Complaint, ¶ 21.) The PIP represented that if Plaintiff met expectations, he would be removed from the PIP, and if not, he could appeal the manager's assessment through a structured appeal process. (Complaint, ¶ 23.) These facts do not sufficiently state a claim that Amazon clearly and unambiguously promised Plaintiff "fair, rule governed opportunities to evaluate performance and to correct materially improper assessments through neutral review." (Complaint, ¶ 154.)

Defendants' demurrer to Plaintiff's seventh cause of action for promissory estoppel is SUSTAINED, WITH 30 DAYS' LEAVE TO AMEND. (*See Tarrar Enterprises, Inc. v. Associated Indemnity Corp., supra*, 83 Cal.App.5th at p. 689.)

III. CONCLUSION

Defendants' demurrer is SUSTAINED as to all causes of action, WITH 30 DAYS' LEAVE TO AMEND.

The court will prepare the Order.

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